

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Petition of Appeal (in terms of rule 2 (1) of the Court of Appeal (Procedure for Appeals from High Court established by Article 154P of the Constitution)

Court of Appeal Case No.  
CA/PHC/15/2022

Revision Application bearing No.  
HCT/REV/634/20

MC Trincomalee (Circuit Court of  
Kuchchaveli) Case bearing No.  
PPC/K/34/LR/20

The Chairman,  
Sri Lanka Tourism Development Authority,  
No. 08, Galle Road,  
Colombo 03.

Applicant

Vs.

Abdul Cader Abdul Rahman,  
Ward NO-01,  
Nilaveli.

Respondent

AND BETWEEN

In the matter of an application for in terms  
of Article 154P (3)(b) of the Constitution.  
(Revision)

Abdul Cader Abdul Rahman,  
Ward NO-01,  
Nilaveli.

Respondent-Petitioner

Vs.

The Chairman,  
Sri Lanka Tourism Development Authority,  
No. 08, Galle Road,  
Colombo 03.

Applicant-Respondent

AND NOW BETWEEN

Abdul Cader Abdul Rahman,  
Ward NO-01,

Nilaveli.

Respondent-Petitioner-Appellant

Vs.

The Chairman,  
Sri Lanka Tourism Development Authority,  
No. 08, Galle Road,  
Colombo 03.

Applicant-Respondent-Respondent

Before:                      **Damith Thotawatte, J.**  
                                    **K.M.S. Dissanayake, J.**

Counsels:                      Nizam Kariapper PC., with M.I.M. Iynullah and Ms. Chathurika  
                                         Perera instructed by A.S.M. Rafees for the Appellant.  
  
                                         Prabhashanee Jayasekara, SC for the Respondents.

Argued:                      25.02.2026

Written submissions      03.09.2025 by Respondent-Petitioner- Appellant  
tendered on:                      15.10.2025 by Applicant- Respondent- Respondent.

Judgment Delivered:      23.06.2026

**Thotawatte, J.**

## **Introduction**

The present appeal has been preferred by the Respondent-Petitioner-Appellant (hereinafter sometimes referred to as the “Appellant”) against the order dated 05.10.2021 of the learned High Court Judge of the Eastern Province holden at Trincomalee in Revision Application No. HCT/REV/634/20 whereby the learned High Court Judge dismissed the

revision application and affirmed the order of the learned Magistrate of Trincomalee holden at Kuchchaveli made under the provisions of the State Lands (Recovery of Possession) Act No. 7 of 1979, (as amended) directing that possession of the land be delivered to the Competent Authority and authorizing the ejectment of the Appellant therefrom.

Both the interlocutory order of the High Court Revision Application No. HCT/REV/634/20 dated 02.12.2020 and the final order of the High Court dated 05.10.2021 refer to 19 connected revision applications, pending before the same High Court and records that the parties had agreed that the determination of the legal issues in HCT/REV/634/20 would apply to those connected matters as well.

### **Connected matters before the Court of Appeal**

The Petitioners of 14 of the aforesaid revision applications had filed the 14 appeals corresponding to their High Court revision applications, before the Court of Appeal comprising of CA (PHC) 15/2022 and CA (PHC) 17/2022 to CA (PHC) 29/2022. As all applications are with regard to the same impugned order of High Court dated 05.10.2021, the learned Presidents Counsel appearing for the Appellants in all the above cases and the State Counsel appearing for the Respondents agreed to abide by the Judgement of CA (PHC) 15/2022 in all the other connected appeals on 25.02.2026.

### **Background**

The Applicant-Respondent-Respondent (hereinafter referred to as the “Respondent”), being the Chairman of the Sri Lanka Tourism Development Authority, instituted proceedings before the Magistrate’s Court of Kuchchaveli under Section 5 of the State Lands (Recovery of Possession) Act seeking recovery of possession of the land described in the application and ejectment of the Appellant therefrom.

Upon notice being issued, the Appellant appeared and resisted the application. The principal objections raised by the Appellant were that the land in dispute was a private land claimed by him under a deed, that the Chairman of the Sri Lanka Tourism Development Authority was not a “competent authority” within the meaning of Section 18 of the Act, and that the Authority itself was not entitled to invoke the provisions of the Act.

After inquiry, the learned Magistrate made order directing ejectment of the Appellant and delivery of possession of the land to an officer nominated by the Respondent.

Being dissatisfied with the said order, the Appellant invoked the revisionary jurisdiction of the High Court. The learned High Court Judge, having considered the objections raised and the submissions of parties, dismissed the revision application. It is from that order that the present appeal has been preferred.

### **Basis for Appeal**

The Appellant contended that:

- a) the Chairman of the Sri Lanka Tourism Development Authority is not a competent authority within the meaning of Section 18 of the State Lands (Recovery of Possession) Act;
- b) the Sri Lanka Tourism Development Authority is not an institution contemplated by Section 18 of the Act;
- c) the Director General and not the Chairman is the proper officer of the Authority;
- d) the land in dispute was not established to be State land; and
- e) consequently, the proceedings before the Magistrate's Court were without legal foundation.

### **Scope of Inquiry under the Act**

At the outset it is necessary to bear in mind the nature of proceedings under the State Lands (Recovery of Possession) Act.

Section 09 of the Act expressly circumscribes the inquiry before the Magistrate. A person summoned under Section 06 is not entitled to contest the matters stated in the application under Section 05 except by establishing that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with written law and that such permit or authority remains valid and subsisting.

The authorities cited before this Court consistently recognize that the jurisdiction conferred upon the Magistrate under the Act is a special and limited jurisdiction. Questions relating to title, ownership disputes, validity of acquisition, or matters falling outside the statutory defence contemplated by Section 09 are not matters that the Magistrate is empowered to determine within such proceedings.

The Appellant does not contend that he produced before the learned Magistrate a valid permit or written authority granted by the State. Instead, the objections raised by him

were directed principally to the status of the land and the competence of the officer who instituted proceedings.

In those circumstances, the learned Magistrate cannot be faulted for declining to enlarge the inquiry beyond the limits prescribed by the statute.

### **Whether the Respondent is a Competent Authority**

The principal argument advanced by the Appellant concerns the interpretation of Section 18 of the Act.

The learned High Court Judge held that the Chairman of the Sri Lanka Tourism Development Authority fell within the statutory definition of “competent authority”.

I see no basis upon which that finding can be disturbed. The definition of "competent authority" contained in section 18 is not confined to the officers expressly enumerated in paragraphs (a) to (g). It further extends to the head of any Government Department or institution created by law where the land is under the control of such department or institution and to an officer generally or specially authorized by a corporate body where the land is vested in, owned by, or under the control of such body.

The Sri Lanka Tourism Development Authority is a statutory body corporate established under Section 2 of the Tourism Act No. 38 of 2005 and is empowered to hold and administer immovable property. Accordingly, where land is vested in, owned by, or under the control of the Authority, an officer authorized by such body is capable of falling within the definition of "competent authority" contained in section 18 of the State Lands (Recovery of Possession) Act.

More importantly, the Appellant sought to challenge before the Magistrate matters which Section 9 precludes him from canvassing in proceedings under the State Lands (Recovery of Possession) Act.

|                        |           |                                                                                                                                                                                                                                                                                                                                   |
|------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Scope<br>of<br>Inquiry | Section 9 | (1) At such inquiry the person on whom summons under section 6 has been served shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land upon a valid permit or other written authority of the State |
|------------------------|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid.

- (2) It shall not be competent to the Magistrate's Court to call for any evidence from the competent authority in support of the application under section 5.

Accordingly, the sole inquiry before the learned Magistrate is whether the occupier possesses a valid permit or other written authority of the State. In the absence of such proof, an order of ejectment must follow.

This principle has been consistently affirmed in judicial authority, including *Muhandiram v. Chairman, No. 111, Janatha Estate Development Board*<sup>1</sup>, where it was held that the onus lies entirely upon the person summoned to establish lawful occupation and that, upon failure to discharge that burden, the only course open to the Magistrate is to order ejectment. It has been further reiterated in *Namunukula Plantations PLC v. Nimal Punchihewa and others*<sup>2</sup>, where the Court emphasized that the statutory inquiry under the Act is limited in scope and that the absence of lawful authority necessarily compels an order of ejectment.

### Whether the Land is State Land

The Appellant further argued that the land was a private land claimed by him under a deed and that the Respondent had failed to establish otherwise.

However, the statutory scheme proceeds upon the opinion formed by the competent authority that the land is State land and that the person concerned is in unauthorized possession thereof. The limited inquiry contemplated by Section 9 does not authorize the Magistrate to embark upon a full investigation of competing claims of title.

Indeed, sections 12 and 13 of the State Lands (Recovery of Possession) Act expressly preserve the right of an aggrieved person to institute appropriate proceedings against the State for vindication of title and compensation.

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<sup>1</sup> [1992] 1 Sri L.R 110

<sup>2</sup> C.A. (PHC) APN 29/2016 Decided on 09.07.2018

Accordingly, even assuming that the Appellant wished to assert a proprietary claim adverse to the State, the Act provides a separate mechanism for the adjudication of such claims. Such questions do not arise for determination within an inquiry under Section 09.

### **Challenge to the Statutory Affidavit**

In the course of his oral submissions before this Court, learned President's Counsel appearing for the Appellant submitted that the principal issue arising for determination is whether the Chairman of the Sri Lanka Tourism Development Authority is competent to make the affidavit required under the State Lands (Recovery of Possession) Act declaring that a particular land is State land, in the absence of material demonstrating that such land had been vested in the Sri Lanka Tourism Development Authority. Learned President's Counsel contended that the Sri Lanka Tourism Development Authority is merely a regulatory body and, therefore, its chairman lacks the authority to make such a declaration. It was further submitted that the Appellant ought to be entitled to challenge before the Magistrate's Court what was described as a "blatant" illegality arising from the institution of proceedings by a person lacking the requisite authority.

In response, learned State Counsel submitted that the affidavit impugned by the Appellant is in the very form prescribed by the State Lands (Recovery of Possession) Act. Learned State Counsel pointed out that Form 6 set out in the Schedule to the Act requires the competent authority to depose that the land in question is State land and that the affidavit filed in the present case strictly conforms to that prescribed form. It was further contended that the expression "State land" appearing in the prescribed form must be understood in the context of the statutory scheme governing the Act and that, for the purposes of those provisions, lands vested in or placed under the control of the Sri Lanka Tourism Development Authority constitute State lands capable of being recovered under the Act.

I am unable to accept the submission of learned President's Counsel for the Appellant and find myself in agreement with learned State Counsel that the affidavit conforms to the form prescribed by law and is therefore not open to challenge on the basis advanced by the Appellants.

### **Revisionary Jurisdiction**

The learned High Court Judge was exercising revisionary jurisdiction. The function of the High Court was not to substitute its own view for that of the Magistrate but to determine whether there existed illegality, jurisdictional error, procedural impropriety, or any other

basis warranting revisionary intervention. Having examined the record and the submissions of parties, I am unable to identify any such error.

The learned Magistrate acted within the powers conferred by the statute. The objections raised by the Appellant did not fall within the limited scope of the inquiry prescribed by Section 09. Nor did the Appellant establish possession under a valid permit or written authority of the State and in those circumstances, the learned High Court Judge was fully justified in refusing to interfere with the order of the Magistrate.

### **Conclusion**

For the foregoing reasons, the order of the learned High Court Judge of Trincomalee in HCT/REV/634/20 is affirmed.

The appeal is dismissed subject to costs.

In terms of the agreement of the parties recorded on 25.02.2026, CA (PHC) 17/2022 to CA (PHC) 29/2022 shall stand dismissed on the same terms (subject to costs) as CA (PHC) 15/2022.

**Judge of the Court of Appeal**

**K.M.S. Dissanayake, J.**

I agree

**Judge of the Court of Appeal**